

Simranpreet Kaur And Anr vs State Of Punjab And Others on 19 February, 2024

Neutral Citation No:=2024:PHHC

2024:PHHC:022961

IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH

(258)

CRWP-243-2024

Date of Decision:-19.02.2024

Simranpreet Kaur and another

.....Petitioners

Versus

State of Punjab and others

.....Respondents

CORAM: HON'BLE MR. JUSTICE ALOK JAIN

Present:Petitioners in person.

ALOK JAIN, J. (Oral)

1. In compliance of order dated 11.01.2024, status report by way of an affidavit of Mr. Jangjit Singh, P.P.S. Deputy Superintendent of Police City-II, Patiala has been filed on behalf of respondent No. 1 to 3 in Court today, which is taken on record.

2. Petitioner No. 1 has made a statement in the Court today that since, her father was convicted in some case and she has been residing with respondents No. 5 & 6 i.e. her maternal uncles (mama). After completing the sentence the father of petitioner No. 1 was released from jail, however, her maternal uncles (mama) i.e. respondents No. 5 & 6 were not ready to send her to her father's house and when she ran away with petitioner No. 2, her father as well as parents of petitioner No. 2 met and resolved the issue and to protect them from any harm from respondents No. 5 & 6, got their marriage solemnized at the Gurdwara Ardaaspura Sahib Parbhandhak Committee Village Kalyan, District Patiala.

3. The father of petitioner No. 1 and father of petitioner No. 2 are also present in the Court and have no objection to the matrimonial accord of the petitioners.

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4. However, without commenting on the validity of the marriage certificate issued by the Gurdwara Ardaaspura Sahib Parbhandhak Committee Village Kalyan, District Patiala on 17.01.2024, which is apparently against the provisions of Section 5 of the Hindu Marriage Act, 1955, as petitioner No. 2 has yet not attained the age of marriage, coupled with the fact that there is no threat to the petitioners as on date, the present petition stands disposed of with a word of caution to the Granthi/Pradhan and Secretary as well as the Manager of Gurdwara Ardaaspura Sahib Parbhandhak Committee Village Kalyan District Patiala, Punjab to be careful in future and it would be open to the petitioners to get their marriage solemnized in accordance with law after petitioner No. 2 attains the age of marriage.

(ALOK JAIN)
JUDGE

February 19, 2024
Parul

Whether speaking/reasoned:-
Whether Reportable:-

Yes/No
Yes/No

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